

- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded. **An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.**

CONNEXUS CREDIT UNION VS. GEOUGE, ET AL.

CASE NUMBER: 25CVG-01931

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause issued on June 24, 2026 to Plaintiff Connexus Credit Union. and Counsel IDEA Law Group, P.C. for failure to timely obtain a default judgment and failure to timely prosecute. Default was entered against Defendant Jonathan Lynn Geouge on July 1, 2026, however, nothing has been filed as to Defendant Cody Jason Murphy-Mummy. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of service on Defendant Cody Jason Murphy-Mummy. If the matter is not at issue by the next hearing, the Court intends to issue an Order to Show Cause Re: Sanctions.

DOE VS. SCHENK, MFC, RAS

CASE NUMBER: 26CV-0210220

Tentative Ruling on Demurrer: Defendant, Daniel Schenk, demurs to the Second Cause of Action for Intentional Infliction of Emotional Distress, the Fourth Cause of Action for Negligence, and the Fifth Cause of Action for Fraud and Deceit alleged in the Complaint filed by Plaintiff on March 25, 2026, on the grounds that the Complaint fails to state facts sufficient to constitute a cause of action. Plaintiff opposes the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Bryan Malone provides evidence of sufficient meet and confer efforts.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Complaint filed on March 25, 2026, and of the fact that Defendant is a licensed marriage and family therapist with the California Board of Behavioral Sciences. The request is granted pursuant to Evid. Code §§ 452.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer should also be sustained if the pleading is uncertain, meaning that the pleading is ambiguous or unintelligible. CCP § 430.10(f). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Second Cause of Action. Defendant demurs to the cause of action for intentional infliction of emotional distress on the grounds that the Complaint fails to allege facts that Defendant’s conduct was so extreme and outrageous as to warrant a claim. “The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of

the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” *Cervantez v. J.C. Penny Co.* (1979) 24 Cal.3d 579, 593. “[T]here is liability for conduct exceeding all bounds usually tolerated by decent society, of a nature which is especially calculated to cause, and does cause, mental distress of a very serious kind.” *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 905. “[T]he qualifying conduct must be so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.” *Melovich Builders v. Superior Court* (1984) 160 Cal.App.3d 931, 936.

The Complaint alleges that (1) Defendant’s conduct was “intentional, outrageous, malicious, and done for the purposes of causing Plaintiff to suffer humiliation, mental anguish, and severe emotional distress;” (2) that Plaintiff “has suffered, and will continue to suffer special damages in the form of past and future medical costs and expenses and past and future lost earnings;” (3) and that Defendant’s conduct was the direct and proximate cause of Plaintiff’s suffering. Additionally, the complaint provides several specific examples of purported conduct by Defendant which Plaintiff alleges is outrageous. This alleged outrageous conduct includes Defendant’s explicit discussions of his own sexual habits and history. The Court finds all necessary elements for a cause of action for intentional infliction of emotional distress have been sufficiently alleged. The demurrer to the Second Cause of Action is **OVERRULED**.

Fourth Cause of Action. Defendant demurs to the general negligence cause of action on the grounds that the claim is duplicative of the First Cause of Action for professional negligence. Plaintiff submits on this argument. The Complaint shows that the professional and general negligence claims are both derived from the same set of facts and circumstances. The demurrer to the Fourth Cause of Action is **SUSTAINED** without leave to amend.

Fifth Cause of Action. Defendant demurs to the fraud and deceit cause of action on the grounds that the claim is not pled with the required heightened specificity. “The elements of fraud, which give rise to the tort action for deceit, are (1) misrepresentation (false representation, concealment or nondisclosure); (2) knowledge of falsity (or 'scienter'); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage.” *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 693. “To withstand a demurrer, the facts constituting every element of the fraud must be alleged with particularity, and the claim cannot be salvaged by references to the general policy favoring the liberal construction of pleadings.” *Goldrich v. Natural Y Surgical Specialties, Inc.* (1994) 25 Cal.App.4th 772, 782. “This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.’” *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 644. “Even in a case involving numerous oft-repeated misrepresentations, the plaintiff must, at a minimum, set out a representative selection of the alleged misrepresentations sufficient to permit the trial court to ascertain whether the statements were material and otherwise actionable.” *Goldrich*, supra, 25 Cal.App.4th 772, 783.

Defendant argues that there are insufficient facts to show what statements were made, how they were false, how Plaintiff justifiably relied on them, or how Plaintiff was damaged. Here, the Complaint alleges that (1) Defendant represented to Plaintiff “that he would do all things necessary to diagnose, care for, and treat Plaintiff,” (2) that this representation was false; (3) that Defendant was “only interested in giving the appearance of treating her so that he could collect fees for her services;” (4) that Plaintiff “reasonably relying on his alleged professional education, training, experience, and representation, agreed to treat with Defendant” and that Plaintiff would not have done so had she known Defendant’s true intent; and (5) Plaintiff has sustained damages in the form of medical expenses and lost wages. While a representative selection of the alleged misrepresentations is acceptable, the Complaint fails to offer specific facts stating how, when, or where the representations were made. The demurrer to the Fifth Cause of action is **SUSTAINED**. As these defects could be cured by Plaintiff providing additional clarity and particularity, leave to amend will be granted.

The Demurrer is **OVERRULED** in part and **SUSTAINED** in part as outlined above. Leave to amend is granted regarding the Fifth Cause of Action in the timeframe to amend set forth in CRC 3.1320(g). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

KNOX VS. MOHAMUD, ET AL.

CASE NUMBER: 23CV-0202275

Tentative Ruling on Motions to Compel Discovery: Defendant Habib Bashir Mohamud filed a Motion to Compel Plaintiff's Responses to Defendant's Pre-Trial Demand for Production of Documents and a Motion to Compel Plaintiff's Responses to Pre-Trial Interrogatories. Both motions were originally noticed for August 3, 2026, however, they were continued to today at the ex parte hearing on July 23, 2026 due to Plaintiff Jamaal Knox's counsel stating that objection free responses would be provided. On August 4, 2026, Defendant filed a Notice informing the Court that responses have still not been provided. Plaintiff did not oppose the motion.

As a preliminary matter, when the motions were filed, the trial was scheduled to commence on August 11, 2026, making the August 3, 2026 hearing date less than fifteen days prior to trial. At the ex parte hearing on July 23, 2026, the Court granted Defendant's request to hear discovery motions after the cut-off date.

Merits. A party has thirty days after service to respond to a Request for Production or Interrogatories. CCP §§ 2031.260(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a) and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Defendant has provided evidence that discovery was propounded and that Plaintiff did not provide verified responses within the required timeframe.

Sanctions. Monetary sanctions are sought in the amount of \$2,310 in each motion. This is comprised of five hours of attorney time on each motion at the rate of \$450 per hour plus a filing fee of \$60. No evidence was provided to support the hourly rate requested, which is higher than average for Shasta County. The Court finds \$300 to be a reasonable hourly rate. No breakdown was provided for the five hours requested on each motion. Given the lack of Opposition, the Court will award 3.5 hours on the Pre-Trial Demand for Production of Documents and 2.5 hours on the Pre-Trial Interrogatories motion. This reflects a reduction of 1.5 hours for not needing to review an Opposition and prepare a substantive Reply and an additional one hour reduction for attending the hearing on the Pre-Trial Interrogatories motion because the motions will be heard at the same time. This amounts to \$1,110 on the Pre-Trial Demand for Production of Documents motion and \$810 on the Pre-Trial Interrogatories motion.

Both motions are **GRANTED**. Plaintiff is ordered to provide verified, objection free responses within fifteen days of Notice of Entry of Order. Monetary sanctions are imposed in the amounts of \$1,110 and \$810 as noted above. Defendant provided proposed Orders that will be modified to reflect the Court's ruling.

KUNAU VS. CITY OF REDDING, ET AL.

CASE NUMBER: 24CV-0205953

Tentative Ruling on Motion for Summary Judgment: Defendant and Cross-Complainant Sysco Sacramento, Inc. ("Sysco") moves for summary judgment against Plaintiff Cody Kunau pursuant to Code of Civil Procedure section 437c on the grounds that there is no triable issue of material fact because: 1) as to the cause of action for negligence, there is no evidence Defendant breached any duty of care or that any act or omission by Defendant was a substantial factor in causing Plaintiff's injuries, and 2) as to the cause of action for battery, there is no evidence Defendant intended to cause harmful or offensive contact. In the alternative, Sysco seeks summary